

Memo: Troopers must hit numbers

By Trevor Brown | Wyoming Tribune Eagle | Nov. 23, 2014

CHEYENNE - State troopers are being told to meet citation quotas or risk missing out on pay raises or job promotions.

An internal document obtained by the Wyoming Tribune Eagle shows the Wyoming Highway Patrol has started to require troopers to make certain numbers of traffic stops and write a certain number of citations per year.

The disclosure has prompted concerns from both law enforcement and civil liberties groups, as well as from troopers within the agency. They say this statistics-driven approach could increase the risks of questionable stops.

"The general consensus is that it's not right for the public, and it's not what we are all about," said one active-duty trooper who spoke on condition of anonymity due to fears of retaliation.

"My concern with it is it could lead to officers making stuff up to make their numbers."

The policy says that troopers in Division 1, which includes Laramie and Albany counties, are expected to make 732 traffic stops each per year.

It also instructs them to write at least 55 seat belt violations per year to meet "competent" standards. Troopers then will need to write 60.5 citations to be considered "commendable" and 66 for "superior."

Furthermore, the memo instructs troopers to set one more goal for themselves.

Troopers who fail to meet these standards could face poor job evaluations, which could affect their career advancement and pay.

Col. John Butler is head of the Wyoming Highway Patrol. He confirmed the directive, which went into effect Aug. 1.

But he said he does not consider it a "quota" policy.

Such policies have been banned or have caused controversy in other areas.

California and Florida, for instance, have laws making it illegal for law enforcement agencies to require officers to meet arrest or citation quotas.

But Butler said the policy is just a way to show whether the patrol is meeting its goals.

"When you do goals, you have to have measurements," he said. "So with that in law enforcement, no matter how we try to hide it or try to avoid it, we have numbers."

Other divisions across the state have put in place similar standards for their troopers, Butler said.

He added that these types of performance goals are not new for the agency.

But what is new is how the goals are tied to the Wyoming Performance Management Instrument. The state put that system in place two years ago to measure job performance of state workers and to tie that to raises when they are offered.

"How well you do in it or don't do in it can affect your rating, which can affect whether you get a raise or don't get a raise," Butler said.

"But I look at that as: If you are performing your job, then you should be properly compensated for it. And if you are not performing your job, you should not be (given a raise)."

It is not unusual for law enforcement agencies across the state and the rest of the country to set division-wide or department-wide goals as part of their strategic plans.

But Bill Johnson said tying traffic stops or citations to troopers' job performances is dangerous. He is executive director of the Virginia-based National Association of Police Organizations.

"There is a big problem with that," he said. "You are introducing something into the equation other than the driver's behavior.

"There is a big risk that at the end of the day, quarter or whatever the reporting period is, that if he or she hasn't met that quota, they might charge an offense that they otherwise wouldn't do."

Johnson added that quotas can hurt the relationship between the officers and the people they are supposed to serve.

And he said most of the law enforcement community resents such policies when they are put in place.

"That tells them, 'Hey, you don't trust my discretion, and you don't trust what I've been doing on the job for the past six years,'" Johnson said.

Jennifer Horvath is staff attorney for the Wyoming chapter of the American Civil Liberties Union. She said she worries about how the quotas would change troopers' behavior.

"My concern is the risk of questionable stops," she said. "Now that jobs are on the line, or promotions or pay increases, (troopers) may stop people when they otherwise wouldn't."

Butler said there has been no evidence of troopers making unnecessary stops to meet the goals. He added that there will be zero tolerance if any such cases are discovered.

But the trooper who spoke to the WTE on the condition of anonymity said the quotas already are leading to potentially questionable stops.

Wyoming has a secondary seat belt law. That means a citation can only be given if the motorist is stopped for another reason, such as speeding or not properly using their turn signal.

But the trooper said he has heard of instances when fellow officers have pulled over motorists for going two or three miles above the speed limit just because they were observed not wearing their seat belt.

"That's not the right way to do things," the trooper said.

Horvath, with the ACLU, said she also has uneasiness about quota systems being put in place to generate more money for the state.

"We train the troopers to make public safety their priority," she said. "But these quotas are shifting that from fighting crime to focusing on money and these numbers."

But unlike many other states, Butler said, revenues from tickets or citations that the patrol writes do not go back to the agency.

Instead, part of the money goes to the courts, and the rest goes to the state's K-12 school system.

"I think when an agency benefits from the revenue, then people can question (the standards)," he said. "We don't have that here."

Butler also asserted that public safety concerns are the sole motivation behind the standards.

He noted that as of Oct. 31, there already had been 126 traffic fatalities this year on Wyoming highways, a 54 percent increase over the same time last year.

Of those deaths, 64 were not wearing seat belts.

"That is why this is such a concern to us," Butler said.

He added that the goals are easily achievable, so making the numbers should not be burdensome to the troopers.

He said issuing roughly 4.5 seat belt citations per month is not asking too much.

And he said the goal of 732 traffic stops per year is based off of the yearly average for the division in 2012 and 2013.

Butler added that this standard works out to about three stops per work day.

"That is unacceptable," he said of those who cannot achieve that goal. "I don't believe the Wyoming Highway Patrol would meet the standards and expectations of the citizens by allowing our folks to make less than an average of three traffic stops per day."

The implementation of the requirements comes as the Highway Patrol is facing a staffing shortage. As of Nov. 7, Butler said, there were 28 vacancies in the 208-person agency. He said that is the highest number of vacancies he ever has seen.

This has raised worries that the quotas could further strain an already overworked staff that also has to respond to accidents, broken-down vehicles and other service calls.

But Butler said the agency will take into account these conditions and others when evaluating troopers' job performance. In addition, he said troopers can file grievances if they disagree with their evaluations.

"If that is a legitimate issue why they can't meet their goals, we have to take that into account and evaluate them fairly," Butler said.

He added that there hasn't been enough time to tell if the statistic-driven standards are making the roads safer.

"I haven't seen anything where there will be a reduction," he said. "It's too early to tell on that."

But he might not even get a chance to see how it plays out.

Johnson, with the National Association of Police

Organizations, said when these types of quotas are exposed, public pushback can be so strong that it causes the agency to get rid of the practice.

"They are generally so disfavored that they are challenged," he said. "If you want motorists to be safer or to wear a seat belt, there are ways to manage that. But it's not to do it through a quota system."

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